



POLICE DEPARTMENT

July 26, 2011

MEMORANDUM FOR: Police Commissioner

Re: Detective Roland Garcia
Tax Registry No. 910799
Firearms Suppression Division
Disciplinary Case No. 85745/09

The above-named member of the Department appeared before me on March 3, 2011, charged with the following:

1. Said Detective Roland Garcia, while on-duty and assigned to the Brooklyn Gun Enhancement Unit, on or about June 9, 2008, failed to prepare required reports, to wit, he failed to make entries into the New York Police Department "F.I.W." database regarding case number 1005, as directed by his supervisor.

P.G. 203-05, Page 1, Paragraph 1 – PERFORMANCE ON DUTY - GENERAL
GENERAL REGULATIONS

2. Said Detective Roland Garcia, while on-duty and assigned to the Brooklyn Gun Enhancement Unit, on or about and in between June 4, 2008 and June 19, 2008, on four occasions, failed to submit his court slip to the administrative lieutenant after appearing in court.

P.G. 203-05, Page 1, Paragraph 1 PERFORMANCE ON DUTY GENERAL
GENERAL REGULATIONS

3. Said Detective Roland Garcia, while on duty and assigned to the Brooklyn Gun Enhancement Unit, on or about August 21, 2008, was scheduled to perform a tour of 0727 hours until 1600 hours, and was absent from his assignment for a total of approximately six (6) hours without permission or police necessity.

P.G. 203 05, Page 1, Paragraph 2 PERFORMANCE ON DUTY – GENERAL
GENERAL REGULATIONS

4. Said Detective Roland Garcia, while on-duty and assigned to the Brooklyn Gun Enhancement Unit, on or about August 21, 2008, was scheduled to appear in court at

Manhattan Criminal Court, and did take meal when court was not in recess, and did fail to enter the location of said meal in his activity log, as required.

P.G. 211 01, Page 1, Paragraph 7 – DUTIES AND CONDUCT IN COURT

5. Said Detective Roland Garcia, while on-duty and assigned to the Brooklyn Gun Enhancement Unit, on or about August 6, 2008, performed a paid detail unit at Commerce Bank from 0715 hours to 1345 hours, less than three (3) hours immediately prior to his regular tour of duty, 1530 hours to 0003 hours.

P.G. 205 40, Page 6, Paragraph 4 OFF-DUTY EMPLOYMENT

The Department was represented by Rita Bieniewicz, Esq., Department Advocate's Office, and Respondent was represented by James Moschella, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to Specification Nos. 2, 3, 4 and 5. The Department moved to dismiss Specification No. 1. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty of Specification Nos. 2 and 5; Guilty of Specification Nos. 3 and 4. It is recommended that Specification No. 1 be dismissed.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Nicola Trivigno and Sergeant John Dilapi as witnesses.

Lieutenant Nicola Trivigno

Trivigno, a 20 and a-half-year member of the Department, is currently assigned to the Auto Crime Division. He testified that while assigned as the Firearms Suppression Division's integrity control officer (ICO) in 2008, he investigated a matter involving Respondent and missing court slips. He explained that the administrative lieutenant, Lieutenant Matthew Davis, was responsible for collecting members' court slips¹, entering them in a log, and organizing them by month in a file cabinet. Although Respondent worked in the unit's Brooklyn office and Davis worked in the Manhattan office, Davis should have received Respondent's court slips in daily mail runs between the offices. Trivigno's investigation commenced in July 2008 after Davis issued Respondent his fourth minor violation for a missing slip (for court dates on June 4, 12, 18, and 19, 2008) and a Command Discipline was to be issued. As part of the investigation, Trivigno reviewed the log kept by Davis and also looked through the court slip files. At the time, there was no record of court slips for the dates in question. Although slips for those dates have subsequently been filed, there is no way to know when they were submitted.

On August 21, 2008, Trivigno conducted a self inspection, pursuant to which he checked the computerized Court Appearance Control System (CACS) to determine which members of the Department were assigned to court in a certain borough that day. He testified that the self-inspection is done at random and unannounced. He visited Manhattan Criminal Court, where he spoke with Senior Police Administrative Aide Dadson in the Police Sign In Room, who informed him that Respondent had punched in. Although he also observed a copy of Respondent's court slip, Trivigno could not locate Respondent. Trivigno directed Sergeant John Dilapi to remain in the Police Sign In

¹ Formally referred to as Court Attendance Records.

Room and wait for Respondent to appear. Meanwhile, Trivigno called the command to see if Respondent had checked in. Nobody at the command had seen or heard from Respondent.

Trivigno then spoke with the Assistant District Attorney (ADA) who was handling the case that Respondent was scheduled to testify in. The ADA who had originally been assigned the case (ADA Linda Ford) was away for a seminar, so Trivigno spoke with ADA Lin and a legal assistant named Evelyn Vargas. Lin informed Trivigno that Respondent had not shown up even though he had previously left a voicemail message stating that he would be there. Vargas told Trivigno that Respondent had been there earlier in the day but then left. Respondent did not want to leave his cell phone number for the ADA.

At an official Department interview, Respondent told Trivigno that he had "hung out for two hours" and, upon discovering that Ford was not there, he told Vargas that "he'll be around," but "went up to the court part and then he went out to get pizza." Trivigno explained that, if there is a discrepancy or mishap when a member of the Department is scheduled to appear in court, the Patrol Guide provides that "he's supposed to report to the Police Sign-In Room supervisor and let them know that his case is not going and that he has no contact with the ADA." Respondent did not follow this procedure, nor did he seek guidance from a supervisor.

On August 6, 2008, Trivigno conducted a self inspection with regard to tours of duty and paid details² performed, as mandated by the Organized Crime Control Bureau. He discovered that Respondent performed a paid detail at Commerce Bank that day

² In the Paid Detail Program, members of the Department wear their uniform and work outside the scope of their regular Department duties with different companies throughout New York City.

between 7:15 a.m. and 1:45 p.m. The Patrol Guide provides that there must be three hours between the end of a paid detail assignment and the start of a Department tour, which was lacking in this case. Respondent was scheduled to work a 6:00 p.m. to 2:33 a.m. tour, but, without a supervisor's approval, signed in at 3:30 p.m. that day. As such, Respondent had only one-and-one half hours between the end of his paid detail and the start of his adjusted tour.

Trivigno was aware of another case where a detective started his tour early, and thereby failed to meet the guidelines requiring at least three hours between a paid detail and a Department tour. In that case, the detective was not found to have committed misconduct since he had been directed by a supervisor to start his tour early. In the current case, however, Respondent did not obtain any such authorization from a supervisor to sign in early. Had Respondent received authorization to adjust his tour, it would have been reflected in the roll call. [Department's Exhibit (DX) 1 is the relevant roll call page for August 6, 2008.]

On cross-examination, Trivigno acknowledged that Respondent is not charged with adjusting his tour without a supervisor's approval on August 6, 2008. He incurred two-and-a-half hours of overtime, which he took in compensatory time rather than taking it in cash, which was an option. Trivigno conceded that Respondent's roll call was signed off by his sergeant, who also approved his overtime. He acknowledged that he had no basis to challenge that Respondent was not performing official Department work upon signing in. Respondent was a regular paid detail worker, both before and after August 6, 2008. Trivigno prints out the times that Respondent works paid details each

month, and this date was the only occasion for which Trivigno noticed any sort of discrepancy.

Regarding the court slips, Trivigno admitted that Respondent provided copies of the court slips for each of the four dates in question during his official Department interview, but did not recall if he told him where he got them from. Trivigno explained that he based his determination that Respondent did not turn in the four court slips solely on the fact that they were not in the Manhattan office, where the administrative lieutenant keeps them. He rejected the possibility that Respondent submitted the court slips for these particular dates and, by some administrative error or fault of the mail run and not his own, they never made it to the Manhattan office. However, he admitted that it is the supervisor's responsibility to ensure the court slips get to the Manhattan office. Respondent's only responsibility is to hand it in to his immediate supervisor. His supervisor was never punished for not following this procedure.

Trivigno could not answer whether Respondent remained in the vicinity of the courthouse on August 21, 2008. All Trivigno knew was that Respondent punched in at 9:12 a.m., and he (Trivigno) saw him at the courthouse after 2:00 p.m. Respondent's notification for that day indicated that he should meet with ADA Ford. Respondent went to Ford's office, but Ford was not there. Vargas told Trivigno that Respondent stopped by her office after checking in and she had a conversation with him about Ford being away at a seminar. Trivigno could not recall whether Vargas also informed Respondent that the case had been reassigned to a new ADA. [Respondent's Exhibit (RX) B is a copy of the notification for Respondent to report to Ford on August 21, 2008.]

Upon questioning by the Court, Trivigno stated that, before the court slips are transported to the Manhattan office, individuals "should keep a copy of all their records." However, he did not check the Brooklyn office to see if there were copies of Respondent's slips.

On recross-examination³, Trivigno acknowledged that Respondent's official Department interview took place on August 26, 2008. He admitted that he had previously testified that, during the interview, Respondent provided copies of the four court slips in question. However, Trivigno's worksheet prepared in relation to that interview indicated that Respondent did not have copies of those court slips with him at the time. He conceded that he did not know exactly when he received the copies, but that it was some time after the official Department interview. [RX A consists of copies of Respondent's court slips.]

Sergeant John Dilapi

Dilapi, a 15-and-a-half year member of the Department, is currently assigned to the Firearms Suppression Division, where he is the assistant ICO. On August 21, 2008, Dilapi went to Manhattan Criminal Court with Trivigno. At approximately 2:30 p.m. that day, he observed Respondent in the Police Sign-In Room. Dilapi signed Respondent's Activity Log and directed him to report to the command. [DX 2 is a copy of that page from Respondent's Activity Log. It indicates that Respondent's tour was 7:27 a.m. by 4:00 p.m. At 7:25 a.m., he was on duty at the Gun Enhancement Unit. At 8:30 a.m., he was en route to Manhattan Criminal Court. At 9:12 a.m., he arrived at court. At 2:40

³ Recross-examination of Trivigno was conducted after Dilapi's cross-examination, after a side bar conference was held stemming from an objection to a question.

p.m., Dilapi signed the book. Respondent made no other entries on that day.] Prior to this date, Dilapi had very little contact with Respondent and did not have any problems with him.

On cross-examination, Dilapi confirmed that he was waiting in the Police Sign-In Room when Respondent entered.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, a 20-year member of the Department, is currently assigned to the Gun Enhancement Unit of the Firearms Suppression Division. He has never before been the subject of Department charges. During the summer of 2008, he worked a regular tour of 6:00 p.m. by 2:33 a.m. As part of his duties, he responded to all patrol arrests that involved a firearm. He would speak with both the arresting officers and their prisoners, and he would have to go to court approximately three times a week to confer with ADAs, prepare for grand juries, or testify in hearings.

Respondent explained that he received a notification whenever he needed to appear in court. Upon receiving a notification, he would inform his supervisor, who would adjust his tour to allow him to appear in court the next day. Upon arriving at court, he would fill out a court slip that verified he was present on a particular date. He would also present his tax identification number to the court administrator, who would enter it into the computer to verify that he was supposed to be there. He would then call

his command to inform them of the time he punched in at the courthouse. This time would be noted on the court attendance sheet in the office. Once he completed these steps, Respondent would report to the office of the ADA to whom the case was assigned. Respondent explained that the ADA's name would have been indicated on the notification. When he finished the work for which he was called into court, he would return to the Police Sign-In Room to punch out with the court slip and then call his command to inform them of the time he left.

Respondent testified that a copy of the court slip is kept in the courthouse, another is dropped in the outgoing mail basket at his command, and a third is kept in a file cabinet in the Gun Enhancement Unit (the Brooklyn office). Respondent testified that he always followed this procedure and that, on the four dates in question, he submitted the original court slip for filing with the administrative lieutenant. He testified that he followed this procedure for every court appearance. He was never approached by anyone or told that there were missing court slips for any particular dates.

Respondent had an official Department interview, the subject of which was the missing court slips. He could not recall whether they provided the specific dates of the missing slips during the interview, but stated that no one followed up about which court slips were missing or requested that he provide them. He testified that the first time he became aware of the specific dates was when he went to the Department Advocate's Office to receive charges. At that point, Respondent went to the Brooklyn office and made copies of the slips from the file cabinet where they are maintained. He explained that he made these copies without removing them from the staple that attached his slips to those of other members of the Department, and that he "specifically did not tear off the

court slips from these documents so that you'll see that they were submitted on these dates on time."

Respondent received a notification to appear in court on August 21, 2008, regarding a firearm arrest in Manhattan North, for which he had a debriefing of the defendant. The notification indicated that he was to see Ford, whom he had met prior to that date. He explained that, upon arriving at court, he punched in and went straight to her office. He waited approximately two hours and then decided to find her paralegal, Vargas, whom he had also previously met. Respondent informed her that he could not find Ford. Vargas called Ford on her cell phone, but could not get in touch with her. According to Respondent, Vargas told him, "Why don't you go get something to eat and return back and I'll find out what's going on."

Respondent testified that he went to the court part where the appearance for the defendant in the case was to be held and saw the defendant's name on the calendar. He explained that this indicated to him that the scheduled appearance for that day was still on. He then left to get something to eat. Up to this point, Respondent still had not made any entries in his Activity Log. He explained that, in the past, if an ADA was handling another matter when he arrived, he would occasionally get something to eat and, upon his return, the attorney would be ready for him. He would not make the Activity Log entry immediately, but rather later, during a recess in court.

Respondent testified that he returned to the courthouse after purchasing some pizza, and that the farthest away from the Manhattan Criminal Court building he went was in "the vicinity of Canal Street." He waited in Vargas' office to hear the status of the case and, at some point after 2:00 p.m., she informed him that the court appearance was

adjourned. According to Respondent, Vargas never told him that the case had been sent to another ADA. After learning the case was adjourned, Respondent went to the Police Sign In Room and punched out. There, he encountered Dilapi.

On August 5, 2008, Respondent was assigned to investigate an arrest involving a gunpoint robbery with four subjects. He was assigned the case just before 12:00 a.m., and investigated the case until approximately 4:00 a.m. on August 6. At that point, he returned to the office, went off-duty, cleaned up, and then had an assignment with the Paid Detail Program. Respondent explained that he regularly performed paid details as a security guard at Commerce Bank between the hours of 7:15 a.m. and 1:45 p.m. He reiterated that he did not regularly start his tour at the Firearms Suppression Unit until 6:00 p.m. After finishing work at the bank on August 6, however, he felt "in [his] heart to go out and finish what [he] started, which was the initial investigation for the leading detective in the 77 Detective Squad to follow up on [the gunpoint robbery] case."

Respondent continued, "[D]uring these gunpoint robbery cases or any robbery cases you want to conduct a twenty-four hours canvas. I initiated paperwork . . . I wanted to pass onto the leading detective on the morning of this case so he could pick up and continue after background checks I completed." Respondent started his tour that day at 3:30 p.m. and worked until 2:33 a.m. He submitted an overtime slip, to be paid in compensatory time and not in cash. His immediate supervisor approved the overtime. The supervisor was not aware of Respondent's paid detail schedule.

Respondent testified that he did not feel he was violating any rules or regulations of the Department by coming in to work early that day. Rather, he believed he was doing investigative work for a robbery that had occurred just prior to his paid detail assignment,

and that he was simply following up on that lead. He stated that he was unaware of the "three hour rule" until he received a phone call from his command informing him that he was receiving a Command Discipline with regard to the incident. Respondent explained that, when he initially signed up for the paid detail assignment in approximately 2003, there was no three-hour rule. Upon receiving the Command Discipline, he called the Paid Detail Unit office and was informed that the rule had only been implemented approximately four to five months prior.

On cross-examination, Respondent testified that on August 21, 2008 he arrived at Ford's office at 9:00 a.m. and waited there until 11:00 a.m., at which time he went to speak with Vargas. He denied that it would have been prudent to call his command to determine whether any new information regarding the status of the case had been ascertained. Vargas informed him that she could not get in touch with Ford, and she suggested that he get something to eat. He then checked the court part calendar to see if the defendant's name was scheduled for his court appearance, and only then went to get something to eat. Respondent acknowledged that he did not ask any of the court officers or ADAs inside the part about the status of the case. Vargas asked for his personal phone number so that she could get in touch with him if Ford called. Respondent refused to provide Vargas with the number. He explained that he never gives his personal phone number to anyone. Nor did he give Vargas the telephone number of his command for her to call if she obtained any further information regarding the case.

Upon returning from lunch, Respondent waited outside Vargas' office until she returned at approximately 2:00 p.m. It was at this point that he found out Ford was at a seminar. In his official Department interview, Respondent stated that Vargas informed

him that Ford was in a seminar the first time he spoke with her, before going to get something to eat. He testified that he was mistaken during the interview regarding when he found out that Ford was at a seminar. He conceded that he did not make any notations in his Activity Log on August 21, 2008 pertaining to his meal or any other activity that occurred between his arrival at court at 9:12 a.m. and 2:40 p.m., which is when he encountered Dilapi.

Regarding the missing court slips, Respondent reiterated that the first time he learned of the specific dates was when he went to the Department Advocate's Office to receive his charges (October 22, 2009). He further reiterated that he found copies of the slips in the Brooklyn file cabinet where they belonged. He did this at some point after the October 2009 interview, although he could not recall an exact date.

With respect to the specification for violating the three-hour rule, when asked why he took the August 6, 2008 overtime in compensatory time, Respondent explained: "I was scheduled to work a later shift and I put it in time because I didn't tell my Sergeant about it. I just came in and did it and I took it in time." He denied that this was unauthorized. Rather, he stated that his supervisor was just not aware of his actions. He denied that the reason he did not take cash was because he felt something was wrong with doing so.

Upon questioning by the Court, Respondent denied receiving a Command Discipline for the missing court slips. According to Respondent, he did not have problems with any supervisors in the Firearms Suppression Division or in the Gun Enhancement Unit, although he acknowledged a supervisor could have had a problem with him, of which he was not aware. He acknowledged that once in February 2007 he

was late to federal court. For that incident, he was issued a Command Discipline but refused to accept it. To his knowledge, this was the only incident where he may have done something that his supervisors did not find satisfactory. He confirmed that during his many visits to the Manhattan Criminal Court, he frequently had to wait a couple of hours before meeting with the assigned ADA.

FINDINGS AND ANALYSIS

Specification No.1

Respondent stands charged herein in that while on duty and assigned to the Brooklyn Gun Enhancement Unit, on or about June 9, 2008, he failed to prepare required reports, to wit, he failed to make entries into the New York Police Department "F.I.W." database regarding case number 1005, as directed by his supervisor. The Assistant Department Advocate moved to dismiss this Charge and Specification as per the amended Charges and Specifications dated January 26, 2011 which were served on Respondent on February 1, 2011, prior to the commencement of trial. There were pre-trial conferences in which Respondent supplied new discovery to the Assistant Department Advocate. The end result was that Specification No. 1 was dismissed by the Department pre-trial without explanation. The Court recommends that this dismissal be granted.

Accordingly, the Court recommends that Specification No. 1 be dismissed.

Specification No. 2

Respondent stands charged herein in that while on-duty and assigned to the Brooklyn Gun Enhancement Unit, on or about and in between June 4, 2008 and June 19, 2008, on four occasions, he failed to submit his court slip to the administrative lieutenant after appearing in court. Respondent is found Not Guilty.

Evidence adduced at trial was established through the testimony of Lieutenant Nicola Trivigno. Trivigno was the ICO at the Firearms Suppression Division in 2008. He stated that Administrative Lieutenant Matthew Davis was responsible to collect members' court slips. They were delivered to him via daily mail runs between the Brooklyn office [where Respondent worked] and the Manhattan office [where Davis worked]. Davis would then collect the slips, enter them in a log, and organize them by month in a file cabinet.

Trivigno said he conducted an investigation into four dates where Respondent was missing court slips-- June 4, 12, 18 and 19, 2008. He reviewed the log kept by Davis and also looked through the court slip files. At the time that he checked, Trivigno said there was no record of court slips for those dates. Trivigno acknowledged, however, that subsequent to the date he checked, those four court slips had been filed, but he could not ascertain when they were submitted. Upon questioning by the Court, Trivigno acknowledged that he did not check the records in the Brooklyn office to see if the court slips were there.

Respondent testified that once he completes a court date, a copy of the court slip is kept in the courthouse, he drops another copy in the outgoing mail basket at his command, and a third copy is kept in a file cabinet in the Gun Enhancement Unit (the

Brooklyn office). He testified that he always follows this procedure, including on the dates in question. He stated that he submitted his original court slip for filing with the administrative lieutenant because he followed this procedure.

Respondent also testified that at no point was he ever informed about the specific dates that court slips were missing until he received Charges and Specifications in this matter. Upon receiving charges, Respondent said that he immediately went to the Brooklyn office and made copies of the court slips which were filed in the Brooklyn office file cabinet. He stated that he specifically made the copies without removing the staples from the court slips because his court slips were attached to court slips of other members of the service and he "specifically did not tear off the court slips from these documents so that you'll see that they were submitted on these dates on time."

Given the fact that 1) Respondent testified that the court slips in question did have a copy maintained in the Brooklyn office, and no one checked the Brooklyn files to see if a copy was there; 2) the fact that the court slips eventually were filed, just that no one could ascertain when; and 3) that the duty to submit the court slips to the administrative lieutenant is really not placed on Respondent (whose duty is to place the court slips in a box and said slips are later removed and transported by inter-office mail to the administrative lieutenant), the Department has failed to prove by a preponderance of the credible evidence that on four occasions between June 4, 2008 and June 19, 2008 Respondent failed to submit his court slips to the administrative lieutenant after appearing in court.

Accordingly, I find Respondent Not Guilty of Specification No. 2.

Specification Nos. 3 and 4

Respondent stands charged herein in that while on-duty and assigned to the Brooklyn Gun Enhancement Unit, on or about August 21, 2008, he was scheduled to perform a tour of 0727 hours until 1600 hours and was absent from his assignment for a total of approximately six hours without permission or police necessity. In addition, Respondent is also charged with taking meal when court was not in recess, and did fail to enter the location of said meal in his activity log. Respondent is found Guilty as charged.

Evidence adduced at trial established that Respondent was scheduled to report to the Manhattan Criminal Court to speak to an ADA regarding a firearms arrest. Respondent testified that he signed in, waited to see ADA Ford for two hours and then contacted her paralegal, Vargas. Respondent said Vargas attempted to reach Ford on the cell phone without success, so she told him to go to lunch and she would attempt to reach Ford.

Respondent said that he checked the court part and saw the defendant's name on the calendar and assumed the case was still on. He went to get pizza, returned to ADA Ford's office and some time after 2:00 p.m. was advised that the case was adjourned. Respondent said just as he attempted to sign out, he encountered Dilapi. Respondent noted in his Activity Log that his tour was 7:27 a.m. to 4:00 p.m. At 7:25 a.m. he was on duty at the Gun Enhancement Unit. At 8:30 a.m. he was en route to Manhattan Criminal Court. At 9:12 a.m. he arrived at court. At 2:40 p.m., Dilapi signed his Activity Log (DX 2).

Dilapi testified that on August 21, 2008, he went to Manhattan Criminal Court with Trivigno. At approximately 2:30 p.m., he encountered Respondent and signed his

Activity Log at 2:40 p.m. Trivigno testified that he spoke with Dadson in the Police Sign-In Room who informed him that Respondent had punched in. Trivigno could not locate Respondent. He told Dilapi to remain in the sign-in room while he looked for Respondent. He called the command, but they had not heard from him. Trivigno attempted to speak to the ADA assigned to the case, but ADA Ford was away at a seminar. He spoke to ADA Lin who stated that Respondent had not shown up even though he left a voicemail message that he would. Vargas stated that Respondent had been there earlier in the day but left. She also stated that Respondent did not want to leave his cell phone number for the ADA.

While Trivigno went to Manhattan Criminal Court and was able to ascertain that Ford was out of the office and that Lin was assigned the case, Respondent was not able to ascertain this information in a timely manner. He spent two hours waiting at the ADA's office, from approximately 9:00 a.m. to 11:00 a.m. then he went to meal. He went to the court part and determined that the case was still on, but he never attempted to speak to anyone there to find out the status.

He did not speak to a court officer or an ADA to ascertain any additional information, instead he said that Vargas told him to get something to eat and Respondent went to lunch. Respondent never took Vargas's number nor attempted to reach her while he was out to lunch. Instead he learned sometime after 2 p.m. that the case was adjourned. Respondent said that Vargas never told him that the case had been assigned to another ADA. It appears from Respondent's own testimony that he went to lunch from 11:00 a.m. and did not actually speak to Vargas again until she returned from lunch at

2:00 p.m. The Court takes judicial notice of the fact that criminal court usually breaks for lunch at 1:00 p.m.

Respondent did not take any steps to handle this matter. He did not call his command to update them on the circumstances. He did not grab a bite to eat and quickly return to the office to be updated. He did not check with anyone at the court part to find out the status. He did not make calls to Vargas while he went out to find out if there was any updated information. Instead he allowed an entire day to go by without doing any police work knowing that the case he went to the court for was still on the court docket.

With respect to the omitted Activity Log entry, Respondent testified that in the past, when an ADA was handling another matter, he would occasionally get something to eat and upon his return, the ADA would be ready for him. In those instances, Respondent said he would not make an Activity Log entry immediately, but later during a recess in court. However, this case is not one of those instances. In this matter, Respondent had not made any contact with the ADA assigned to his case. He was told to take a meal because according to him, the ADA's whereabouts were not known. By the time it was 1:00 p.m., Respondent had spent four hours without knowing what to do and took no affirmative action to resolve the situation.

Accordingly, I find Respondent Guilty of Specification Nos. 3 and 4.

Specification No. 5

Respondent stands charged herein in that while on-duty and assigned to the Brooklyn Gun Enhancement Unit, on or about August 6, 2008, he performed a paid detail at Commerce Bank from 0715 hours to 1345 hours, less than three (3) hours immediately

prior to his regular tour of duty, 1530 hours to 0003 hours. Respondent is found Not Guilty.

The Assistant Department Advocate has not charged Respondent with a violation of the proper section of the Patrol Guide in two areas. First, Patrol Guide 205-40 states in its purpose:

To regulate off duty employment of uniformed members of the service, except that off duty employment performed with the Paid Detail Unit.

Thus the Patrol Guide specifically exempts employment with the Paid Detail Unit by this section. Secondly, Respondent is also charged with violating page six, paragraph four of this Patrol Guide section. Paragraph four involves exceeding 20 hours each week in off duty employment, not the three-hour rule which was the gravamen of the evidence purported in this proceeding. Paragraph five refers to the three-hour rule, but Respondent was not charged with violating that section of the Patrol Guide.

Assuming *arguendo*, that the three-hour rule was meant to apply even in paid detail situations, evidence adduced at trial established that Respondent was a regular paid detail worker both before August 6, 2008 and after August 6, 2008. Trivigno, the ICO of Respondent's command at the time, testified that he prints out the paid detail reports every month and August 6, 2008 was the only date where he noticed a discrepancy in the time Respondent worked the detail and the time Respondent started his tour.⁴

Respondent testified that on August 5, 2008, he was assigned to investigate an arrest involving a gunpoint robbery with four subjects. He was assigned the case just before 12:00 a.m., and investigated the case until approximately 4:00 a.m. Respondent

⁴ Paid detail reference is not codified in the Patrol Guide. Reference is made to it via the Department's intranet and accessing "Personnel Applications."

then went off-duty and worked his paid detail. He explained that normally he would not begin his Department tour until 6:00 p.m. However, he felt the need to finish up the initial investigation in the gunpoint robbery case so that the lead detective in the 77 Precinct Detective Squad would have the information he needed. Respondent explained that in gunpoint robbery cases, it is preferred that canvasses be conducted within 24 hours. He needed to initiate paperwork so that the lead detective could continue following the background checks that Respondent completed. Because of this, Respondent started his tour at 3:30 p.m. and worked until 2:33 a.m. He put in for overtime in the form of compensatory time, not cash, and his time was approved by a supervisor. Respondent acknowledged that the superior did not know about the paid detail that he worked prior to the overtime.

Respondent also testified that he was unaware of the "three-hour rule," i.e., that a member of the service cannot work for the Department within three hours of working a paid detail. Respondent explained that he had been working paid details since 2003 and there was no "three-hour rule" back then. It was not until he learned that he would receive a Command Discipline for violating the "three-hour rule" that he contacted the Paid Detail Unit and learned that the rule had been implemented four to five months earlier.

The Court finds mitigating circumstances here. For one, Respondent had been doing paid details for approximately five years and Trivigno stated that only on one occasion did he find a discrepancy in Respondent's time. Secondly, Respondent stated that he only came in early to provide investigative information to the lead detective in the detective squad who would be handling the gunpoint robbery case that initially went to

Respondent. Thus, Respondent showed a good faith basis for starting his tour early. Thirdly, Respondent testified credibly that he had no idea that the three-hour rule existed because when he began working paid details, there was no such rule in effect. Finally, Respondent's scheduled tour was to begin at 6:00 p.m., but he came in early to work on a robbery case to assist the lead squad detective (See DX 1). The three-hour rule, when applicable, applies to working within three hours of one's **regular tour of duty** (Emphasis added). Respondent did not violate this rule by starting earlier than his regular tour.

For these reasons, the Court finds Respondent Not Guilty of Specification No. 5.

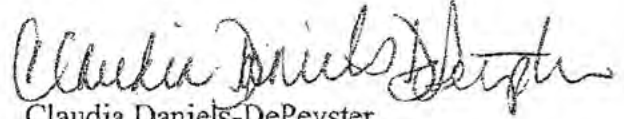
PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on April 30, 1991. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

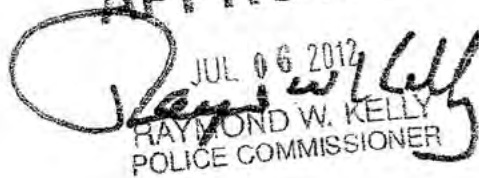
Respondent has been found Guilty of being absent from his assignment for approximately five hours from 9:15 a.m. when he signed in at the Manhattan District Attorney's office until approximately 2:40 p.m. when Trivigno signed his Activity Log. Respondent was also found Guilty of taking his meal when court was not in recess and failed to enter the location of said meal in his Activity Log. The Assistant Department Advocate asked for a penalty of 20 vacation days. The Court disagrees. Specification No. 1 was dismissed and Respondent was found Not Guilty of Specification Nos. 2 and 5.

It is recommended that Respondent forfeit eight vacation days to resolve the remaining Charges pending against him.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner-Trials

APPROVED
JUL 06 2012

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE ROLAND GARCIA
TAX REGISTRY NO. 910799
DISCIPLINARY CASE NO. 85745/09

In 2009 and 2008, Respondent received an overall rating of 4.0 "Highly Competent" on his annual performance evaluations. In 2007, he received a rating of 3.5 "Above Competent." Respondent has not received any medals in his career to date.

[REDACTED]

Respondent has no prior formal disciplinary record.

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner Trials